

IN THE CIRCUIT COURT IN AND FOR ESCAMBIA COUNTY, FLORIDA

MARC M. MOSZKOWSKI,

Plaintiff,

vs.

Case No.: 2020 CA 001021

RUSTIN R. HOWARD

Division: E

Defendant

and

THOMAS J. JOHNSON,

Defendant

**PLAINTIFF MOSZKOWSKI'S MOTION IN OPPOSITION**

Plaintiff MARC M. MOSZKOWSKI (hereinafter referred to as "MOSZKOWSKI"), Pro Se, hereby submits his opposition to Defendants HOWARD and JOHNSON's Motion to Dismiss the complaint<sup>1</sup>.

Throughout their Motion to Dismiss, Defendants HOWARD and JOHNSON awkwardly attempt to hide their full personal responsibility as the only two Directors of one corporation behind two corporate veils, one of which does not even exist: one corporation is DeepGulf, Inc., a Florida entity of which MOSZKOWSKI is the largest shareholder and was a Director until his

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<sup>1</sup> Refer also to MOSZKOWSKI's "*Motion to Strike the Complaint as a Sham*", case 2018 CA 000543, in the Circuit Court in and for Escambia County, Florida.

position was eliminated in July 2020 in a transparent abuse of power by the majority, said abuse of power being imputable only to the two Defendants; the other is Toke Oil and Gas S.A., a company which was originally established in the foreign country of the Democratic Republic of East Timor in 2008, but has, since around 2012, nearly a decade ago, lost any legal status and good standing and cannot in consequence be sued either in East Timor or in the United States. As an inexistent entity, the latter corporation cannot provide any corporate veil to the Defendants.

Furthermore, even if the corporation had somehow any subsisting legal existence, the last document produced by HOWARD regarding Toke Oil and Gas S.A.'s alleged Board of Directors, which dates from March 2013, shows clearly that HOWARD professed at the time that the corporation had only two Directors on its Board, one of them being MOSZKOWSKI and the other HOWARD. Consequently, and as he thoroughly expounded throughout his pleadings, MOSZKOWSKI questions again (a) who gave authority to HOWARD to make the unilateral decision for Toke Oil and Gas S.A. to sue one of Toke Oil and Gas S.A.'s only two Directors; (b) who made the decision to sue in a Court of Law located in a jurisdiction other than those of the nationality of the corporation or the nationality of MOSZKOWSKI; (c) the whereabouts of Toke Oil and Gas S.A.'s Board of

Directors written resolution to initiate a lawsuit against one of its only two Directors<sup>2</sup>; and finally (d) the suitability of MOSZKOWSKI suing an East Timorese corporation, if it still even existed, of which he would be one of the only two Directors, the venue being necessarily an East Timorese Court.

As MOSZKOWSKI made abundantly clear in his Complaint, the conflicts of interest and legal impossibility of suing both or either of his own Florida company and/or an inexistent foreign entity leave him no alternative to suing personally the only remaining Directors of DeepGulf Inc., who are the only two individuals making decisions for the corporations, and who are the ones who instigated a fraudulent and mendacious lawsuit against MOSZKOWSKI.

Furthermore, the two Defendants will be able to either represent themselves or retain counsel using their own funds, whereas the company, as a virtual entity, requires an attorney and such attorney is paid with company funds that are unequivocally owed MOSZKOWSKI, as has sadly been the case in all the litigation against him to-date.

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<sup>2</sup> Despite MOSZKOWSKI's repeated demands, answers were never produced by Counsel for the Defendants during previous discovery.

Not only does DeepGulf, Inc. indisputably owe MOSZKOWSKI close to one million U.S. dollars and has refused to pay for MOSZKOWSKI's defense, as was however undeniably mandated by the company's very own Bylaws, but also Counsel<sup>3</sup> for the Defendants seems brazen enough to demand that MOSZKOWSKI continue in effect to pay for his services against him. MOSZKOWSKI believes that if this is not a blatant and continued conflict of interest, nothing is.

MOSZKOWSKI stresses again that he was sued not only by DeepGulf, Inc., a Florida corporation, but also by a fictitious Plaintiff deceitfully introduced by HOWARD and JOHNSON, Toke Oil and Gas S.A. (originally styled "Inc." by Counsel for the Defendants), a company which was established in the foreign country of East Timor in 2008, but has, since around 2012, nearly a decade ago, lost any legal status and good standing and cannot in consequence sue or be sued either in East Timor or in the United States.

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<sup>3</sup> To further blur distinctions between parties and encourage conflicts of interest, both Defendants Howard and Johnson, U.S. corporation DeepGulf, Inc., and extinct foreign corporation Toke Oil and Gas S.A. are all represented by the same attorney, be it in the First Judicial Circuit Courts of Florida, in U.S. District Court for the Northern District of Florida, and in the U.S. Court of Appeals for the Eleventh Circuit.

To summarize, it is not an option for MOSZKOWSKI to sue the companies that originally sued him at the sole instigation of HOWARD and JOHNSON and possibly their Counsel, since there are significant conflicts of interest for both companies and one has no legal existence. Through this action he is suing the instigators personally, for injurious actions that he is confident deserve anyhow a referral to the criminal justice system<sup>4</sup>.

At any rate, HOWARD and JOHNSON can hardly succeed in their attempt to hide behind the corporate veil of a foreign corporation which is devoid of any legal existence or good standing and was therefore fraudulently produced as a plaintiff by none other than HOWARD and JOHNSON themselves.

On another level, Counsel for the Defendants has the audacity to state that "*[o]f course, Plaintiff had a full and fair opportunity to challenge those agreement [sic] at trial in the federal court case*" when in fact it was precisely Counsel for the Defendants who denied to MOSZKOWSKI "*a full*

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<sup>4</sup> Said injurious actions have cost MOSZKOWSKI not only his good name but also all the money he could scrape together for his defense, let alone the loss of four years wasted in futile litigation, the waste of his company's potential, the severe emotional distress he endured and still endures, not to mention the significant waste of time and resources imposed on not just one but three Florida Circuit Courts, one Federal District Court on two occasions, and one Federal Court of Appeals.

*and fair opportunity*" to appear in Court for the trial: on the day of the trial, Covid-19 related Presidential Proclamation 9993 of March 11, 2020, prohibited MOSZKOWSKI's entry into the United States, as was the case for all travelers from Europe. Consequently, MOSZKOWSKI moved the Court to allow him to appear by videoconference, but Counsel for the Defendants counter-moved the Court not to allow an appearance by videoconference, and, quite astonishingly, the Court sided with the counter motion and MOSZKOWSKI could therefore not have his day in Court. He had planned to demonstrate in Court that the alleged "*agreement[s]*" produced by his opponents had been fraudulently forged and falsified by none other than HOWARD, but he was robbed of the opportunity to appear in Court.

It was Defendant HOWARD who fabricated and provided false information under oath, not DeepGulf, Inc. or inexistent Toke Oil and Gas S.A. Likewise, it was HOWARD who oversaw the books of DeepGulf, Inc. and introduced falsified information in them. HOWARD cannot escape the civil and criminal responsibilities for his own actions.

Also, it was HOWARD, with the support of JOHNSON, who personally procured proxies for themselves from certain DeepGulf, Inc.'s shareholders

who were inaccessible to MOSZKOWSKI, since HOWARD had refused for years to provide the complete and correct whereabouts of all shareholders, and neither did he during discovery, despite MOSZKOWSKI's repeated demands.

Regarding the fraudulent inducement of witness Gino Ernesto Favaro to lie under oath, Mr. Favaro, a very sick Australian man who lives in Australia and who is said to be nearly incapacitated, officiated his sworn statement before a Justice of the Peace in the foreign and distant State of Queensland, in Australia. He was content to merely affix his signature at the bottom of the affidavit which Counsel for the Defendants had worded and typed himself from his Pensacola law office, complete with legal vocabulary not in use in Australia and the same recurrent typographical errors conspicuous in most of Counsel's filings. The affidavit is not only clearly mendacious but also utterly absurd, as MOSZKOWSKI demonstrated to Counsel for the Defendants on repeated instances, particularly in his Brief of Appellee in the United States Court of Appeals for the Eleventh Circuit. The absurdity of the affidavit is absolutely in line with practically all of Counsel's filings to-date.

Regarding Count X, the fraud originates in Defendant HOWARD personally, since he formally provided a personal guarantee on his own personal assets to the U.S. Government, by which personal guarantee HOWARD committed to pay MOSZKOWSKI's salaries if DeepGulf, Inc. did not. There is obviously no Statute of Limitations that could apply, since HOWARD had kept said formal commitment hidden from MOSZKOWSKI until late in discovery. The fraudulent intent is blatant.

As a noteworthy curiosity, the bizarre assertion made by Counsel for the Defendants that he was not able to understand the wording of Count XII does not necessary imply that the wording could not be understood in good faith by a reasonably diligent reader. MOSZKOWSKI has carefully reviewed the wording of the Count and stands by it<sup>5</sup>.

Finally, Counsel for the Defendants seems to be entirely comfortable with HOWARD having committed perjury during a deposition under oath, his client having repeatedly misconstrued facts and events throughout litigation, while he never even once produced any authentic unadulterated piece of

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<sup>5</sup> It is suggested to Counsel for the Defendants to familiarize himself with the documents mentioned by MOSZKOWSKI in Count XII, which documents can hardly be unknown to Counsel, since he is the one who finally provided them to MOSZKOWSKI after much resistance and procrastination, and only under threat of subpoena.



evidence. MOSZKOWSKI, who is not a lawyer, wonders what the point can possibly be in taking a solemn oath if there is no adverse consequence for lying after having solemnly sworn that the truth, the whole truth, and nothing but the truth be told. As a further indication of the paucity of the due diligence he conducted on his absurd case, it seems that the Attorney for HOWARD was not aware that his client had a recent history of prior litigation in the very same Federal Court and before the very same Judge his case against MOSZKOWSKI was litigated<sup>6</sup>.

MOSZKOWSKI asserts again that it is not an option for him to sue the corporations that originally sued him at the sole instigation of HOWARD and JOHNSON and possibly their Counsel. As he has abundantly shown throughout the thousands of pages of his pleadings, there are significant conflicts of interest for both companies (DeepGulf, Inc. and Toke Oil and Gas S.A.) and one company (Toke Oil and Gas S.A.) has simply no legal existence whatsoever. Through this action MOSZKOWSKI is suing the instigators personally, while their malicious actions deserve a referral to the criminal justice system. At any rate, HOWARD and JOHNSON can hardly attempt to hide behind the corporate veil of a foreign corporation (Toke Oil and Gas S.A.) which is devoid of any legal existence or good standing and

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<sup>6</sup> The alternative being that he was.

had therefore been fraudulently produced as a plaintiff by none other than HOWARD and JOHNSON themselves.

Signed, this 10<sup>th</sup> day of January, 2022.

Marc Moszkowski, Pro Se

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Le Verdos

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A handwritten signature in black ink, appearing to read "M. Moszkowski". The signature is written in a cursive, flowing style.

### **CERTIFICATE OF SERVICE**

I hereby certify that, on this 10<sup>th</sup> day of January, 2022, a copy of this motion has been provided to Braden K. Ball, Jr., attorney for the plaintiffs, through the Florida Courts E-Filing Portal.

A handwritten signature in black ink, appearing to read "M. Moszkowski". The signature is written in a cursive, flowing style.